

24LBCV01983 24LBCV01983

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-02

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Case Number: 24LBCV01983 Hearing Date: July 2, 2026 Dept: S27

1. Background

Facts

Plaintiff, Christopher Gerkins

filed this action against Defendant, American Honda Motor Co., Inc. for violations of the Song-Beverly Act, breach of implied warranty, and fraudulent inducement – concealment.

2. Motion

for Summary Judgment/Adjudication

a.

Relief Sought

Defendant moves for summary

judgment, contending the complaint and every cause of action is barred by the applicable statute of limitations, and also contending each cause of action fails for independent reasons. Alternatively,

Defendant moves for summary adjudication of the fourth and fifth causes of action and the prayer for punitive damages.

b. Burdens

on Summary Judgment

Summary judgment is proper “if all

the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of

law.” (Code Civ. Proc. §437c(c).) Where a defendant seeks summary judgment or

adjudication, he must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.”

(Id. at §437c(o)(2).) A defendant

may satisfy this burden by showing that the claim “cannot be established”

because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31

Cal.App.4th 574, 590.) Once the

defendant meets this burden, the burden shifts to the plaintiff to show that a

“triable issue of one or more material facts exists as to that cause of action

or defense thereto.” (Ibid.)

The moving party bears the initial

burden of production to make a prima facie showing that there are no triable

issues of material fact. (Aguilar v.

Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must

show either (1) that one or more elements of the cause of action cannot be

established or (2) that there is a complete defense to that cause of action. (Id. at §437c(p).) A defendant may discharge this burden by

furnishing either (1) affirmative evidence of the required facts or (2)

discovery responses conceding that the plaintiff lacks evidence to establish an

essential element of the plaintiff's case. If a defendant chooses the latter

option he or she must present evidence “and not simply point out that plaintiff

does not possess and cannot reasonably obtain needed evidence....” Aguilar,

supra, 25 Cal.4th at 865-66,

[A] defendant may simply show the

plaintiff cannot establish an essential element of the cause of action “by

showing that the plaintiff does not possess, and cannot reasonably obtain,

needed evidence.” (Id. at p. 854.) Thus,

rather than affirmatively disproving or negating an element (e.g., causation),

a defendant moving for summary judgment has the option of presenting evidence

reflecting the plaintiff does not possess evidence to prove that element. “The

defendant may, but need not, present evidence that conclusively negates an

element of the plaintiff's cause of action. The defendant may also present

evidence that the plaintiff does not possess, and cannot reasonably obtain,

needed evidence—as through admissions by the plaintiff following extensive discovery

to the effect that he has discovered nothing” to support an essential element

of his case. (Aguilar, supra, at p. 855.) Under the latter approach, a

defendant's initial evidentiary showing may “consist of the deposition

testimony of the plaintiff's witnesses, the plaintiff's factually devoid

discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.” (Lona v. Citibank, N.A., supra, 202 Cal.App.4th at p. 110.)

In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred. (Scheiding v. Dinwiddie Construction Co. (1999) 69 Cal.App.4th 64, 83.)

Thus, a moving defendant has two means by which to shift the burden of proof under the summary judgment statute: “The defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon. [Citation.] [Or a]lternatively, the defendant may utilize the tried and true technique of negating (‘disproving’) an essential element of the plaintiff's cause of action.” (Brantly v. Pisaro (1996) 42 Cal.App.4th 1591, 1598.) Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1103.

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Id. at §437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

c. Statute
of Limitations

Defendant establishes Plaintiff leased the automobile in 2019 but did not file suit until 2024. Each cause of action has a statute of limitations of one year (implied warranty), four years (Song-Beverly), or three years (fraud). Defendant met its initial burden to show each cause of action is barred by the statute of limitations.

Plaintiff's opposition is entirely silent in this regard. Plaintiff therefore failed to raise a triable issue of material fact, and the motion for summary judgment is granted.

d. Additional
Issues

The Court declines to rule on Plaintiff's request for judicial notice, Defendant's evidentiary objections, or any other issue presented by way of the motion, as doing so is not necessary to a resolution of the merits of the motion, which is granted due to Plaintiff's failure to raise triable issues of material fact re: the statute of limitations.

e.
Future Dates

The FSC and trial dates are vacated. Defendant is ordered to prepare a proposed judgment of dismissal for processing.

f.
Notice

Defendant is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.